



MEMORANDUM

TO: The Honorable Mayor Patrick Collins and City of Cheyenne Council Members
FROM: Robin Lockman, City Treasurer
DATE: August 7, 2023
SUBJECT: Re-Appropriation to be considered for approval

On August 14, 2023, the Governing Body will be referring a resolution to the Finance Committee to re-appropriate funds for the Fiscal Year (FY) 2023 City of Cheyenne Budget per W.S. § 16-4-112 and 16-4-113. More information is detailed below regarding this final FY 2023 re-appropriation request.

GENERAL FUND RESERVES REQUEST

The following General Fund reserve requests are included for your consideration:

City Council Health Insurance Coverage Changes

Members of the City Council made changes to their health insurance coverages during last fiscal year that were not included in the budget. I am asking for \$20,745 from reserves to pay for the increase to this line item.

Vacation Accrual Payouts for Terminated Employees

During FY 2023, the City has paid out several sick and vacation accrual leave balances once an employee terminated their employment. Generally, accrual payouts are not budgeted for unless a retirement is anticipated. If the position is replaced immediately, the budget is not enough to cover the accrual payout. I am requesting a total increase of \$57,572 from reserves to cover these expenses.

Increase in Natural Gas and Electricity and Fleet Fuel, Labor, and Parts Costs

My department estimates the natural gas and electricity costs for city buildings when the budget is developed each year. In December 2022 and January 2023, extremely frigid temperatures across the nation forced homes and businesses to increase their heat during those two months, which sent the price of natural gas soaring. The average spot price for natural gas at the Opal Hub surpassed \$26 per thousand cubic feet for more than a month last winter. Normal levels are \$3.98 per thousand cubic feet. As a result, the City's projections for natural gas costs were inadequate. Therefore, I am requesting \$93,700 from General Fund reserves to cover this shortage.

Additionally, the City's expenditures for fuel, labor and parts have exceeded the approved FY 2023 budget for several General Fund departments. I am requesting an increase of \$131,323 from General Fund reserves to cover this budget shortfall.

Vandalism Expenses

Throughout the fiscal year, the Facilities Maintenance, Forestry, Aquatics, Golf Courses, Parks, Cemetery, and Clean and Safe Divisions have been forced to pay for unforeseen vandalism expenses to City assets. These expenses were not budgeted for, as it is difficult to estimate these types of costs when the budget is initially prepared. I am requesting an increase of \$45,639 from reserves to cover these costs.

Insurance Claims

Repair costs due to accidents are unpredictable; therefore, when the budget is initially prepared each year, I do not forecast the City's portion of loss claims. Instead, I choose to handle these expenditures through a budget reappropriation at the end of the fiscal year.

I am requesting increases for the following departments:

- Police Department - \$25,433
- Fire Department - \$6,559, and
- Community Recreation and Events - \$5,000

Information on each incident with a cost over \$1,000 are included below:

Police Department

- Summary of Claim #4183CH: An employee was conducting a traffic stop and requested additional backup. Two more employees responded and parked behind the employee conducting the traffic stop. A driver under the influence drove into the back of the rear vehicle, which pushed that vehicle into the other vehicles parked in front of it. A claim has been filed with the Wyoming Association of Risk Management (WARM). WARM is working with the District Attorney's office on restitution. The cost to the City is the \$5,000 deductible.
- Summary of Claim #4289CH: An employee came to a brief stop and proceeded to enter the intersection. They did not see a vehicle traveling through the intersection and struck the vehicle. The cost to the City is the \$5,000 deductible.
- Summary of Claim #4414CH: An employee was backing out of their driveway to leave for work and hit a fence post. The repairs were \$3,543.98, which is under the deductible limit.
- Summary of Claim #4388CH: An employee was driving their vehicle out of the Public Safety Center's basement parking and struck the side of the wall. The repairs were \$3,658.65, which is under the deductible limit.

- Summary of Claim #4317CH: An employee was traveling on Dell Range and proceeded through a green light. A citizen turned onto Dell Range into the lane the employee was traveling in and caused the accident. The insurance company's estimate did not match the cost of repairs. WARM contacted citizen's the insurance company but they would not change their estimate. The amount not covered by the citizen's insurance was \$1,118.65.
- Summary of Claim #4227CH: An employee was responding to an accident using their lights and siren on Dell Range. The employee cleared the intersection and proceeded through. A citizen struck the employee's vehicle. A property claim was filed with WARM and the cost to the City was the \$5,000 is deductible.

Fire Department

- Summary of Claim #3812CH: The employee was leaving the bay with a ladder truck and did not know the door was closing. The cost to the City is the \$5,000 deductible.
- Summary of Claim #4194CH: An employee hit a citizen's vehicle in an intersection. Both parties claimed they did not see the other and the employee was given a citation which was later dismissed. The citizen's insurance filed a claim and WARM denied it. WARM filed a claim for damages with the citizen's insurance company and was denied. WARM then received a partial payment from the citizen's insurance company. The repairs not covered were \$3,533.09.

Community Recreation and Events Department

- Summary of Claim #4308CH: An aquatics employee was in the middle of an intersection when a citizen's vehicle ran the stop sign and collided with the city vehicle. The vehicle responsible for the collision left the scene. Witnesses attempted to follow the vehicle but were not able to stay with it. The city vehicle was totaled, and a property claim was filed with WARM. The total claim was \$43,973 and the City was reimbursed for everything but the \$5,000 deductible.

Fire Department Overtime

The Fire Department responded to several major incidents which created increased overtime costs. These major incidents include fires at 2004 E. Lincolnway, 115 and 117 Longs Peak Drive and 1500 W. College Drive as well as the gas leak at the Granite Rehabilitation Wellness Center. There were also three extended sick leaves for occupational cancer, PTSD and COVID exposure. I am requesting \$75,000 to cover the higher overtime costs.

OTHER FUNDS – NEW REVENUE AND RESERVES REQUESTS

Weed and Pest Fund

- An increase of \$80,000 is requested for revenue received from the Laramie County Weed and Pest to help pay for the Crow Creek goat grazing project.

Recreation Programs Fund

- An increase of \$68,745 is requested for sponsorships received to pay for expenditures for Fridays on the Plaza.
- An increase of \$16,266 in revenue is requested to pay for child care program expenditures.
- A transfer of \$8,385 from the Superday reserves account is requested to pay for expenditures related to this year's Superday celebration.
- An increase of \$17,703 in concessions revenue is requested to pay for inventory.
- An increase of \$3,440 in Botanic Gardens revenue is requested to pay for gift shop inventory expenses.

One Percent Sales Tax Fund

- A transfer of \$501,881 from this fund's Fire Department reserves account is requested to pay for increased fire department maintenance and equipment expenditures.

Self Insurance Fund

- An increase of \$1,174,600 in stop loss claim revenue is requested to pay for claims that have been incurred but not reported (IBNR) as of June 30, 2023, and other expenditures.

Miscellaneous Agency Fund

- An increase of \$196,572 in property and liability insurance claims revenue is requested to pay for city insurance claim expenditures.
- An increase of \$120 in the car seat program revenue account is requested to pay for expenditures pertaining to the Fire Department's car seat program.
- An increase of \$16,901 in greenway projects revenue is requested to pay for increased greenway expenditures.

Perpetual Care Fund

- An increase of \$8,818 in the investment interest revenue account is requested. When a customer purchases a cemetery lot, \$400 of the fee goes into the fund. At the end of each month, my department computes the amount of interest earned on the investments in this fund and then transfers this interest to the General Fund. The \$400 per lot perpetual care fees is never transferred to the General Fund.

As always, if you have any questions, please give me a call at 637-6336.

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION RE-APPROPRIATING THE FISCAL YEAR 2023 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF W.S. §§ 16-4-112 & 16-4-113."

BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:
That the Municipal Budget of the City of Cheyenne for Fiscal Year 2023 be re-appropriated as follows:

	BUDGET	INCREASE/DECREASE	REVISED
City Council	\$ 289,997	\$ 20,745	\$ 310,742
Mayor	7,155,980	9,923	7,165,903
City Clerk	843,177	-	843,177
Public Works	4,672,536	11,825	4,684,361
Police	16,242,205	64,408	16,306,613
Fire	12,970,128	222,797	13,192,925
Community Recreation and Events	9,107,469	131,274	9,238,743
City Engineer	1,453,909	-	1,453,909
City Treasurer	896,337	-	896,337
Planning and Development	1,132,440	-	1,132,440
Miscellaneous	6,842,931	-	6,842,931
TOTAL GENERAL FUND	\$ 61,607,108	\$ 460,972	\$ 62,068,080
Weed and Pest	\$ 724,419	\$ 80,000	\$ 804,419
Local and State Grants	4,423,302	-	4,423,302
Youth Alternatives Grants	948,361	-	948,361
Recreation Programs	2,130,146	115,955	2,246,101
Community Development Block Grant	1,403,423	-	1,403,423
Real Property Revolving	565,258	-	565,258
Law Enforcement Grants	856,021	-	856,021
Federal Grants	12,740,079	-	12,740,079
Transportation Planning	1,101,140	-	1,101,140
Transit	2,893,409	-	2,893,409
Juvenile Justice	178,699	-	178,699
Special Friends	54,266	-	54,266
Annexation Improvements	108,500	-	108,500
Housing Loans	16,497	-	16,497
Miscellaneous Agency Funds	250,700	213,592	464,292
TOTAL SPECIAL REVENUE FUNDS	\$ 28,394,221	\$ 409,547	\$ 28,803,768
Development Impact Fees	\$ 1,387,858	\$ -	\$ 1,387,858
One Percent Sales Tax	38,367,806	501,881	38,869,687
Specific Purpose Option Tax	32,382,816	-	32,382,816
Youth Activities/Ropes	18,209	-	18,209
Golf Facilities	519,611	-	519,611
TOTAL CAPITAL PROJECTS FUNDS	\$ 72,676,300	\$ 501,881	\$ 73,178,181
Solid Waste Management	\$ 21,187,577	\$ -	\$ 21,187,577
Fleet Maintenance	6,219,259	-	6,219,259
Civic Center	2,826,763	-	2,826,763
Ice & Events Center	847,284	-	847,284
TOTAL PROPRIETARY FUNDS	\$ 31,080,883	\$ -	\$ 31,080,883
Perpetual Care	\$ 3,000	\$ 15,000	\$ 18,000
TOTAL PERMANENT FUND	\$ 3,000	\$ 15,000	\$ 18,000
General Fiduciary Fund	\$ 47,953	\$ -	\$ 47,953
Self Insurance Fiduciary Fund	9,031,507	1,174,600	10,206,107
TOTAL FIDUCIARY FUND	\$ 9,079,460	\$ 1,174,600	\$ 10,254,060
TOTAL CITY	\$ 202,840,972	\$ 2,562,000	\$ 205,402,972
Water Enterprise	\$ 61,496,480	\$ -	\$ 61,496,480
Sewer Enterprise	23,253,765	-	23,253,765
TOTAL BOARD OF PUBLIC UTILITIES	\$ 84,750,245	\$ -	\$ 84,750,245
TOTAL APPROPRIATIONS	\$ 287,591,217	\$ 2,562,000	\$ 290,153,217

REVENUE SOURCE	REVISED	INCREASE/DECREASE	REVISED
Taxes and Special Assessments	\$ 14,926,718	\$ -	\$ 14,926,718
Intergovernmental	35,785,832	-	35,785,832
Fines and Forfeits	720,600	-	720,600
Licenses and Permits	3,098,240	-	3,098,240
Charges for Services	1,814,500	-	1,814,500
Miscellaneous	1,478,967	-	1,478,967
Interest	152,800	-	152,800
Transfers	771,736	-	771,736
Grants	603,000	-	603,000
Revenue from Reserves	2,254,716	460,972	2,715,688
TOTAL GENERAL FUND	\$ 61,607,108	\$ 460,972	\$ 62,068,080
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TOTAL CITY	\$ 202,840,972	\$ 2,562,000	\$ 205,402,973
Water Enterprise	\$ 61,496,480	\$ -	\$ 61,496,480
Sewer Enterprise	23,253,765	-	23,253,765
TOTAL BOARD OF PUBLIC UTILITIES	\$ 84,750,245	\$ -	\$ 84,750,245
TOTAL REVENUES	\$ 287,591,217	\$ 2,562,000	\$ 290,153,218

The sources of revenue increasing (decreasing) the budget of the General Fund are:

New Revenues	\$	-
Reserves		460,972
Total General Fund	\$	460,972

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023

PATRICK COLLINS, MAYOR

(seal)

ATTEST:

KRISTINA F. JONES, CITY CLERK

CITY OF CHEYENNE
FY 2023 BUDGET REAPPROPRIATION - SUMMARY
To be approved at the August 28, 2023 Council Meeting

GENERAL FUND	Source of Funds:			
	Carryover Reserves	Additional Revenue	Department Transfers	Total
City Council Department				
• Health Insurance Coverage Changes	\$ 20,745	\$ -	\$ -	\$ 20,745
Mayor Department				
• Employee Termination Vacation Accrual Payout(s)	\$ 9,923	-	-	9,923
Public Works Department				
• Increased Utility Expenditures	\$ 5,402	-	-	5,402
• Vandalism Expenditures	6,423	-	-	6,423
Police Department				
• Insurance Deductible Expenditures	\$ 25,433	-	-	25,433
• Increased Utility Expenditures	5,212	-	-	5,212
• Increased Fleet Fuel, Labor and Parts Expenditures	10,281	-	-	10,281
• Employee Termination Vacation Accrual Payout(s)	23,482	-	-	23,482
Fire Department				-
• Increased Utility Expenditures	\$ 22,022	-	-	22,022
• Employee Termination Vacation Accrual Payout(s)	5,205	-	-	5,205
• Insurance Deductible Expenditures	6,559	-	-	6,559
• Fleet Fuel, Labor, & Parts Expenditures	114,011	-	-	114,011
• Increased Overtime Pay Expenditures	75,000	-	-	75,000
Community Recreation & Events Department				
• Insurance Deductible Expenditures	\$ 5,000	-	-	5,000
• Employee Termination Vacation Accrual Payout(s)	18,963	-	-	18,963
• Increased Utility Expenditures	61,065	-	-	61,065
• Vandalism Expenditures	39,216	-	-	39,216
• Increased Fleet Fuel, Labor and Parts Expenditures	7,031	-	-	7,031
TOTAL GENERAL FUND	\$ 460,972	\$ -	\$ -	\$ 460,972

SPECIAL REVENUE FUNDS	Source of Funds:			
	Carryover Reserves	Additional Revenue		Total
Weed & Pest Fund 010				
• Goat Grazing Project on Crow Creek	\$ -	\$ 80,000		\$ 80,000
Recreation Fund 014				
• Increased Fridays on the Plaza Revenue and Expenditures		68,745		68,745
• Increased Child Care Revenue and Expenditures	-	16,266		16,266
• Increased Superday Use of Reserves and Expenditures		8,385		8,385
• Increased Concessions Revenue and Expenditures		19,120		19,120
• Increased Botanic Gardens Gift Shop Revenue and Expenditures	-	3,440		3,440
Miscellaneous Agency Funds 210				
• Increased Insurance Claim Revenue and Expenditures	-	196,572		196,572
• Increased CFR Car Seat Program Revenue and Expenditures	-	120		120
• Increased Greenway Projects Revenue and Expenditures	-	16,901		16,901
TOTAL SPECIAL REVENUE FUNDS	\$ -	\$ 409,547	\$ -	\$ 409,547

CAPITAL PROJECTS FUNDS	Source of Funds:			
	Carryover Reserves	Additional Revenue		Total
One Percent Sales Tax Fund 020				
• Increased Fire Department Expenditures	\$ 501,881	\$ -	\$ -	\$ 501,881
TOTAL CAPITAL PROJECTS FUNDS	\$ 501,881	\$ -	\$ -	\$ 501,881

FIDUCIARY FUNDS	Source of Funds:			
	Carryover Reserves	Additional Revenue		Total

Self Insurance Fund 103				
• Employee Health Insurance Claims	\$ -	\$ 1,174,600	\$ -	\$ 1,174,600
TOTAL TRUST AND AGENCY FUNDS	\$ -	\$ 1,174,600	\$ -	\$ 1,174,600

PERMANENT FUNDS	Source of Funds:			
	Carryover Reserves	Additional Revenue		Total

Cemetery Perpetual Fund 220				
• Higher Investment Revenue (transferred to General Fund)	\$ -	\$ 15,000	\$ -	\$ 15,000
TOTAL PERMANENT FUNDS	\$ -	\$ 15,000	\$ -	\$ 15,000
TOTAL CITY FUNDS	\$ 962,853	\$ 1,599,147	\$ -	\$ 2,562,000
BOARD OF PUBLIC UTILITIES INCREASE	\$ -	\$ -	\$ -	\$ -
TOTAL REAPPROPRIATION				\$ 2,562,000

GENERAL FUND RESERVES SUMMARY				
General Fund Unrestricted Reserve Use Request				\$ 460,972
Total General Fund Reserve Use Request				\$ 460,972